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Model City Charter (5th ed., 1941), Art. II, Secs. 11-14

Art. II

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The Council

Council not to interfere in appointments or removals

§ 11. Neither the council nor any of its members shall direct or request the appointment of any person to, or his removal from, office by the city manager or by any of his subordinates, or in any manner take part in the appointment or removal of officers and employees in the administrative service of the city. Except for the purpose of inquiry, the council and its members shall deal with the administrative service solely through the city manager and neither the council nor any member thereof shall give orders to any subordinates of the city manager, either publicly or privately. Any councilman violating the provisions of this section, or voting for a resolution or ordinance in violation of this section, shall be guilty of a misdemeanor and upon conviction thereof shall cease to be a councilman.

Vacancies in council

§ 12. Vacancies in the council shall be filled by recount of votes cast in the last preceding election as provided in section 165 of this charter.³

Creation of new departments or offices; change of duties.

§ 13. The council by ordinance may create, change, and abolish offices, departments or agencies, other than the offices, departments and agencies established by this charter. The council by ordinance may assign additional functions or duties to offices, departments or agencies established by this charter, but may not discontinue or assign to any other office, department or agency any function or duty assigned by this charter to a particular office, department or agency.

City clerk

§ 14. The council shall elect an officer of the city, who shall have the title of city clerk, shall give notice of its meetings, shall keep the journal of its proceedings, shall

3 For a discussion of methods of filling vacancies, see footnote to section 165.